CHAPTER 3 Concept of the Constitution

MEANING

The term 'constitution' is derived from the Latin word *constituere,* which means 'to establish' or 'to set-up'. In the present sense, the term 'constitution' refers to a set of principles, which specify the organisation and working of the government and the relationship between the government and the people in terms of their rights and duties.

The constitution is variously described as the 'fundamental law of the land', 'supreme law of the state', 'basic law of the country', 'instrument of the government', 'rules of the state', 'basic structure of the polity', 'grundnorm of the country' and so on.

Political scientists and Constitutional experts have defined the constitution in the following way:

Gilchrist: "The constitution consists of that body of rules or laws which determine the organization of government, the distribution of powers to the various organs of government, and the general principles on which these powers are to be exercised."[1]

Gettell: "The fundamental principles that determine the form of a state are called its constitution. These include the method of which the state is organised, the distribution of its sovereign powers among the various organs of government, the scope and manner of exercise of governmental functions, and the relation of the government to the people over whom its authority is exercised".[2]

Wheare: "The Constitution describes the whole system of government of a country, the collection of rules which establish and regulate or govern the government."[3]

Wade and Phillips: "A constitution is a document having a special legal sanctity which sets out the framework and the principal functions of the organs of the Government of a State and declares the principles governing the operation of those organs."[4]

FUNCTIONS

The constitutional scholar, Elliot Bulmer, has very well identified the functions (or purposes) of a constitution. His list is comprehensive and includes the following points[5]:

1. It can declare and define the boundaries of the political community.
2. It can declare and define the nature and authority of the political community.
3. It can express the identity and values of a national community.
4. It can declare and define the rights and duties of citizens.
5. It can establish and regulate the political institutions of the community.
6. It can divide or share power between different layers of government or sub-state communities.
7. It can declare the official religious identity of the state and demarcate relationships between sacred and secular authorities.